

SECTION -7 PART - G:
Integrity Pact

To be signed on plain paper by Both BSNL and the Bidder

This **Integrity Pact** is made on **05th day of Aug 2025**, by and between:

Bharat Sanchar Nigam Limited (BSNL) (hereinafter referred to as "The Principle")

And

Ms. QuadGen Wireless Solutions Private Limited . (Hereinafter referred to as "The Bidder/ Contractor") Each of the Principle and the Bidder shall be individually referred to as the "Party" and collectively as the "Parties".

Preamble

- A. The Principle intends to award, under laid down organisational procedures, contract/s for ***Designing, Planning, Supply, Installation, Configuration, Customisation, Integration, Testing, Commissioning and O&M OF Central Network Operations Centre (C-NOC) for Amended BharatNet Program*** ("Tender"). The principle values full compliance with all relevant laws and regulations, and the principles of economic use of resources, and of fairness and transparency in its relations with its Bidder/s.
- B. In order to achieve these goals, the principle will appoint an Independent External Monitor (as hereinafter defined) who will monitor the Tender process and the execution of the contract for compliance with the principles mentioned above.

Section 1 – Commitments of the Principle

1.1 The Principle commits itself to take all measures necessary to prevent corruption and to observe the following principles: -

1.2 No employee of the principle, personally or through family members, will in connection with the Tender for, or the execution of a contract, demand, take a promise for or accept, for him/herself or third person, any material or immaterial benefit which he/she is not legally entitled to.

1.3 The Principle will, during the Tender process treat all Bidder(s) with equity and reason. The principle will in particular, before and during the Tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential/additional information through which the Bidder(s) could obtain an advantage in relation to the tender process or the contract execution.

1.4 The Principle will exclude from the process all known prejudiced persons.

a) If the Principle obtains information on the conduct of any of its employees which is a criminal offence under the relevant Anti-Corruption Laws of India, or if there be a substantive suspicion in this regard, the principle will inform its Corporate Vigilance Office of BSNL ("Corporate Vigilance Office") and in addition can initiate disciplinary actions.



Section 2 – Commitments of the Bidder(s)

2.1 The Bidder(s) commits itself to take all measures necessary to prevent corruption. He commits himself to observe the following principles during his participation in the Tender process and during the contract execution.

2.2 The Bidder(s) will not, directly or through any other person or firm, offer, promise or give to any of the Principle's employees involved in the tender process or the execution of the contract or to any third person any material or immaterial benefit which he/she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.

2.3 The Bidder(s) will not enter with other Bidder(s) into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelisation in the bidding process.

- The Bidder(s) will not commit any offence under the relevant applicable laws include the anti-corruption laws of India; further the Bidder(s)/Contractor(s) will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the Principle as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.
- The Bidder(s)/ will, when presenting his Bid, disclose any and all payments he has made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the Contract.
- The Bidder(s) will not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section 3 – Disqualification from Tender process and exclusion from future contracts

If the Bidder(s) before award of the Contract or during execution of the Contract has committed a transgression through a violation of Section 2, above or in any other form such as to put his reliability or credibility in question, the principle is entitled to disqualify the Bidder(s)/Contractor(s) from the tender process or take action as per the defined procedure.

Section 4 – Compensation for Damages

4.1 If the Principle has disqualified the Bidder(s) from the Tender process prior to the award of the Tender, according to Section 3, the principle is entitled to demand and recover the damages equivalent to Bid Security.

4.2 If the Principle has terminated the Contract in accordance with Section 3, or if the principle is entitled to terminate the Contract according to Section 3, the principle shall be entitled to demand



and recover from the Contractor the amount equivalent to Performance Security in addition to any other payments as per terms and conditions of the Tender Document.

Section 5 – Previous transgression

5.1 The Bidder declares that no previous transgression occurred in the last 3 years with any other Company in any country conforming to the anti-corruption approach or with any other public sector enterprise in India that could justify his exclusion from the Tender process.

5.2 If the Bidder makes any incorrect, contrary to the provisions of this Section 5, he can be disqualified from the Tender process or action can be taken as per the defined procedure.

Section 6 – Equal treatment of all Bidders/ Subcontractors

6.1 The Principle will enter into agreements with identical conditions as this one with all Bidders.

6.2 The Bidder(s) undertake(s) to demand from all subcontractors a commitment in conformity with this Integrity Pact .

6.3 The Principle will disqualify from the Tender process all bidders who do not sign this Integrity Pact or violate its provisions.

Section 7 – Criminal charges against violating Bidder(s)/ Subcontractor(s)

If the Principle obtains knowledge of conduct of a Bidder, or Subcontractor, or of an employee or a representative or an associate of a Bidder, or Subcontractor, which constitutes a violation of the terms and conditions of stated herein, or if the principle has substantive suspicion in this regard, the principle will inform the Corporate Vigilance Office.

Section 8 – Independent External Monitor

8.1 The principle appoints competent and credible independent external Monitor for this Integrity Pact (“Independent External Monitor”). The task of the Independent External Monitor is to review independently and objectively, whether and to what extent the Parties comply with the obligations under this Integrity Pact.

8.2 The Independent External Monitor is not subject to instructions by the representatives of the Parties and performs his functions neutrally and independently. He reports to the CMD of the BSNL.

8.3 The Bidder(s) accepts that the Independent External Monitor has the right to access without restriction to all project documentation of the principle including that provided by its sub-contractor. The Bidder will also grant the Independent External Monitor, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his project documentation. The same is applicable to the subcontractors of the Bidder. The Independent External Monitor is under contractual obligation to treat the information and documents of the Bidder(s)/ Subcontractor(s) with confidentiality.

8.4 Notwithstanding anything contained in this Section, the Bidder(s) shall have no obligation whatsoever to provide any internal costing mechanisms or any internal financial or commercial data



pursuant to any audit or review conducted by or on behalf of the principle. Further, the Bidder(s) shall not be required to provide any data relating to its other customers, or any personnel or employee related date.

8.5 The Principle will provide to the Independent External Monitor sufficient information about all meetings among the Parties related to the project provided such meetings could have an impact on the contractual relations between the Principle and the Bidder. The Parties offer to the Independent External Monitor the option to participate in such meetings.

8.6 As soon as the Independent External Monitor notices, or believes to notice, a violation of this Integrity Pact, he will so inform the management of the principle and request the management to discontinue or take corrective action, or to take other relevant action. The Independent External Monitor can in this regard submit non-binding recommendations. Beyond this, the Independent External Monitor has no right to demand from the Parties that they act in a specific manner, refrain from action or tolerate action.

8.7 The Independent External Monitor will submit a written report to the Chairperson of the Board of the Principle within 8 to 10 weeks from the date of reference or intimation to him by the 'Principle' and, should the occasion arise, submit proposals for correcting problematic situations.

8.8 If the Independent External Monitor has reported to the CMD of the BSNL, a substantiated suspicion of an offence under Applicable Laws including relevant anti-corruption laws of India, and BSNL has not, within reasonable time, taken visible action to proceed against such offence or reported it to the Corporate Vigilance Office, the Independent External Monitor may also transmit this information directly to the Central Vigilance Commissioner, Government of India.

8.9 The word Independent External 'Monitor' would include both singular and plural.

Section 9 – Term

9.1 This Integrity Pact shall commence upon the date of signature by BSNL and shall continue (a) for the Successful Bidder for a period of 12 months after the last payment has been made by the Principle to the Successful Bidder under the Contract, and (ii) for all other Bidders 6 months after the Contract has been awarded to the Successful Bidder ("Term").

9.2 If any claim is made/ lodged during this time, the same shall be binding and continue to be valid despite the lapse of this Integrity Pact Agreement as specified above, unless it is discharged/determined by CMD, BSNL.

Section 10 – Other provisions

10.1. This Integrity Pact is subject to the laws of India. The place of performance and jurisdiction is the registered office of the principle, i.e., New Delhi. The arbitration clause provided in the Tender Document / contract shall not be applicable for any issue /dispute arising under Integrity Pact.

- Changes and supplements as well as termination notices need to be made in writing.
- Should one or several provisions of this Integrity Pact turn out to be invalid, the remainder of this



Integrity Pact remains valid. In this case, the parties will strive to come to an agreement to their original intention.

- Capitalised terms not defined in the Integrity Pact shall have the meaning assigned to it in the Tender.

For the Principle



for the Bidder/Contractor

Place.....

Witness 1: 

Date: 05-08-2025

Date

Witness 2:  

Date: 05-08-2025

